

## I. CLAIMANT'S NINE-YEAR HOMEOWNERSHIP AND EQUITY INVESTMENT

1. In 2010, Claimant purchased her first home at 19344 Strathcona Drive, Detroit, Michigan 48203 (Parcel ID: 02004687), a historic Tudor in the Palmer Woods neighborhood.
2. The purchase price was \$212,500. Claimant made a down payment of \$20,000.
3. Claimant obtained mortgage financing of \$192,500, initially serviced by Bank of America and later transferred to Bayview Loan Servicing.
4. From 2010 through 2019, Claimant made 108 consecutive monthly mortgage payments of approximately \$2,200 each, totaling approximately \$237,600 in mortgage payments.
5. Combined with her \$20,000 down payment, Claimant invested approximately \$257,600 in this property over nine years of homeownership.
6. During this time, Claimant was building equity through both principal payments and property appreciation in the desirable Palmer Woods neighborhood, where properties have historically appreciated significantly.
7. It is worth noting that Bayview Loan Servicing has been the subject of numerous consumer protection lawsuits and complaints regarding predatory lending practices, mortgage servicing violations, and improper foreclosure actions. Claimant may have been among those affected by such practices.

## II. THE 2019 TAX FORECLOSURE

8. In 2019, Claimant fell behind on property taxes due to business difficulties in her transportation and logistics operations.
9. On information and belief, Wayne County Treasurer initiated tax foreclosure proceedings against the property under Michigan's General Property Tax Act.
10. On information and belief, Wayne County obtained a judgment of foreclosure in this Court sometime in 2019. (Claimant requires County to provide the specific date, as County failed to provide this information as required by law.)
11. On information and belief, Wayne County sold the property at public auction in 2019. (Again, Claimant requires County to provide the specific sale date and sale price, as County failed to provide this information as required by law.)
12. County records show the property was resold on the private market on May 15, 2020 for \$283,400, just eight months after the county auction, indicating significant equity existed at the time of foreclosure.

13. Following the foreclosure and sale, Claimant received nothing. Wayne County kept all proceeds.

14. Claimant's nine years of homeownership ended with the loss of her entire \$257,600 investment.

### III. CLAIMANT TIMELY FILED HER SURPLUS PROCEEDS CLAIM

15. Following Michigan Supreme Court decisions in *Rafaeli v. Oakland County* and *Hall v. Macomb County*, the Michigan Legislature enacted MCL 211.78t, requiring counties to return surplus proceeds from tax foreclosure sales to former property owners and other claimants.

16. MCL 211.78t required persons with an interest in foreclosed property to file a Notice of Intent to Claim Interest by March 31, 2025.

17. On February 12, 2025—well before the March 31, 2025 deadline—Claimant timely filed her Notice of Intent to Claim Interest in Foreclosure Sale Proceeds (Form 6156) with Wayne County Treasurer.

18. On May 16, 2025, Wayne County Treasurer acknowledged receipt of Claimant's Notice of Intent, assigning Reference Number 831721WD08GCR. See Exhibit A (Acknowledgment Letter dated May 16, 2025).

19. In that acknowledgment letter, Wayne County promised: "Please note that this office will send you an additional notice on or before July 1, 2025 as required by Michigan law with further instructions and actions you must take with the Third Circuit Court to claim any portion of any remaining proceeds that you may be entitled to under MCL 211.78t."

20. Wayne County never sent that notice.

### IV. WAYNE COUNTY'S STATUTORY VIOLATION PREVENTED TIMELY FILING

21. MCL 211.78t(7) requires the foreclosing governmental unit to send a "motion notice" to all claimants by July 1, 2025, providing: a. The case number from the original foreclosure judgment; b. Instructions for filing a motion to claim proceeds; c. The deadline for filing such motion (October 1, 2025); d. Information about the sale proceeds and amounts claimed.

22. Wayne County failed to send this required motion notice by July 1, 2025.

23. Without this information—particularly the case number—Claimant could not file the required Motion to Claim Remaining Proceeds by the October 1, 2025 deadline.

24. Claimant attempted to obtain this information but was unable to do so without the motion notice County was required to send.

25. The October 1, 2025 deadline has now passed, but Claimant's inability to meet that deadline was caused entirely by Wayne County's failure to comply with its statutory obligations.

26. Wayne County violated MCL 211.78t(7) and deprived Claimant of due process by failing to provide the information necessary for her to pursue her claim.

#### V. THE CURRENT EMERGENCY: IMMINENT RESIDENTIAL EVICTION

27. Following the loss of her home in the 2019 foreclosure, Claimant became a renter.

28. Claimant currently resides at 13697 Silent Woods Drive, Shelby Township, Michigan 48315, where she has lived for approximately one and a half years.

29. Claimant operates her business, DEE DAVIS INC, from a home office at this address. DEE DAVIS INC is a federally certified woman-owned small business operating eight divisions including transportation, logistics, freight brokerage, and other services.

30. Like countless small businesses, Claimant's logistics and transportation operations have suffered severe impacts from the COVID-19 pandemic and its continuing effects on supply chains and the logistics industry.

31. Business has been extremely slow, resulting in significant financial hardship.

32. Despite her best efforts, Claimant has fallen behind on rent and currently owes two months' rent totaling \$7,200 (December 2025 and January 2026), with February 2026 rent of \$3,500 also now due.

33. On February 1, 2026, Claimant received written notice from her landlord regarding the unpaid rent.

34. Claimant is now facing imminent eviction from her rental home.

35. If evicted, Claimant will lose not only her housing but also her business operations, as she operates from her home office.

#### VI. CLAIMANT HAS EXHAUSTED ALL OTHER OPTIONS

36. Claimant has desperately sought to avoid this crisis through every means available.

37. Claimant has sought financial assistance from family and friends, but they are unable to provide the needed funds.

38. Claimant has applied for emergency rental assistance programs, but has been unable to secure timely assistance.

39. Claimant has attempted to negotiate with her landlord for additional time, but landlord requires payment.

40. Claimant has sought loans from financial institutions, but has been unable to qualify given her current financial circumstances.

41. Claimant has attempted to secure advance payments from business clients, but has been unsuccessful.

42. In desperation, Claimant has even sold her personal vehicle to raise funds, but this was insufficient to cover all back rent and ongoing obligations.

43. Claimant has no other source of funds available to prevent eviction.

44. The only funds to which Claimant has any potential access are the surplus proceeds from the 2019 foreclosure—funds that Wayne County has been holding for seven years.

## VII. THE UNCONSCIONABLE SITUATION

45. Wayne County has held the surplus proceeds from Claimant's property since 2019—seven years.

46. During those seven years, County has had the benefit of those funds while Claimant struggled to rebuild her life after losing her home.

47. Claimant filed her claim timely in February 2025.

48. County acknowledged her claim in May 2025.

49. County promised to send required information by July 2025.

50. County failed to send that information, preventing Claimant from filing her motion by October 2025.

51. Now, County's failure threatens to result in Claimant losing her rental home and business while County continues to hold her money.

52. The arc of Claimant's situation is devastating: • 2010-2019: Homeowner, investing \$257,600 over nine years • 2019: Lost home to county foreclosure, received nothing • 2019-2025: Became renter, trying to rebuild • 2026: Facing eviction while County holds her equity

53. This Court should not permit Claimant to become homeless while Wayne County sits on the proceeds from her nine-year investment in homeownership.

## LEGAL ARGUMENT

### I. THIS COURT HAS AUTHORITY TO GRANT EMERGENCY RELIEF

54. This Court possesses inherent equitable authority to prevent irreparable harm pending resolution of the underlying claim. Michigan Supreme Court v. Mich. Judges Ass'n, 468 Mich. 398, 404 (2003).

55. MCR 3.310 authorizes courts to grant temporary restraining orders and preliminary injunctions to prevent immediate and irreparable harm.

56. This motion is filed in the same proceeding in which the foreclosure judgment was entered, meaning this Court has continuing jurisdiction over the matter.

57. MCL 211.78t establishes a statutory framework for claiming surplus proceeds but does not divest this Court of its equitable authority to prevent unconscionable results during the pendency of such claims.

58. The Michigan Supreme Court's decisions in *Rafaeli* and *Hall* were premised on the constitutional principle that taking property in excess of taxes owed violates due process. This Court's equitable authority extends to ensuring that the remedial framework established by MCL 211.78t accomplishes its constitutional purpose.

### II. CLAIMANT SATISFIES ALL REQUIREMENTS FOR PRELIMINARY INJUNCTION

59. Under Michigan law, a preliminary injunction is appropriate when the moving party demonstrates: a. Likelihood of success on the merits; b. Danger of irreparable harm if relief is not granted; c. The harm to the moving party if relief is denied outweighs the harm to the opposing party if relief is granted; and d. The public interest will be served by granting relief. *Michigan Coalition of State Employee Unions v. Civil Service Comm.*, 465 Mich. 212, 227 (2001).

60. Claimant satisfies all four requirements.

#### A. Likelihood of Success on the Merits

61. Claimant has an extremely strong likelihood of success on her claim for surplus proceeds.

62. Claimant was the sole owner of the property from 2010 to 2019, a matter of public record.

63. Claimant invested \$257,600 in the property through her down payment and nine years of mortgage payments.

64. The property's rapid resale for \$283,400 just eight months after the county auction demonstrates that significant equity existed.

65. Under MCL 211.78t(5), surplus proceeds are distributed in order of priority: a. First to the foreclosing governmental unit for taxes and costs; b. Then to mortgage holders or other secured creditors who timely filed claims; c. Then to the former property owner.

66. As the former property owner, Claimant is entitled to any proceeds remaining after payments to County and any mortgage holder.

67. Claimant timely filed her Notice of Intent on February 12, 2025, nearly two months before the March 31, 2025 deadline.

68. Wayne County acknowledged Claimant's filing and assigned a reference number, confirming the validity of her claim.

69. The only reason Claimant did not file her Motion to Claim Proceeds by October 1, 2025 is that Wayne County failed to provide the required motion notice by July 1, 2025.

70. Claimant should not be penalized for Wayne County's violation of its statutory obligations.

71. Under principles of equitable tolling, deadlines are tolled when "a plaintiff's failure to meet a legally-mandated deadline unavoidably arose from circumstances beyond that plaintiff's control." *Cook v. Statewide Fire Equipment*, 234 Mich. App. 237, 243 (1999).

72. Claimant's inability to meet the October 1 deadline "unavoidably arose from circumstances beyond her control"—specifically, County's failure to provide the case number and other information required by statute.

73. Moreover, Wayne County's failure to provide the required notice violated Claimant's due process rights. "An elementary and fundamental requirement of due process in any proceeding which is to be accorded finality is notice reasonably

calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections." *Mullane v. Central Hanover Bank & Trust Co.*, 339 U.S. 306, 314 (1950).

74. Claimant's claim is meritorious, timely, and should succeed on the merits.

#### B. Irreparable Harm to Claimant

75. Claimant faces immediate and irreparable harm: the loss of her home and business.

76. "The law is clear that the loss of a person's home constitutes irreparable harm." *In re Contempt of Dougherty*, 302 Mich. App. 367, 389 (2013).

77. Residential eviction is not merely an inconvenience—it is a life-altering catastrophe that cannot be adequately remedied by money damages after the fact.

78. If evicted, Claimant will lose: a. Her housing and stability; b. Her home office from which she operates her business; c. Her ability to generate income to support herself; d. Her business operations and client relationships; e. Her credit and ability to rent in the future.

79. These harms cannot be undone by a later payment of surplus proceeds. One cannot "unlose" a home or "unrelocate" a business after eviction.

80. The harm is particularly acute because Claimant already lost her home once, in 2019, through no fault of her own beyond falling behind on taxes during business difficulties.

81. To lose a second home—this time a rental—while Wayne County holds the equity from her first home would compound the injustice exponentially.

82. Further, Claimant has exhausted all other options. She has sold her car, sought help from family and friends, applied for assistance programs, and attempted to negotiate with her landlord. There is no other source of funds available except the surplus proceeds County is holding.

83. The harm is imminent. Claimant received eviction notice on February 1, 2026. Eviction proceedings may commence immediately.

84. This harm is irreparable and cannot be adequately remedied after the fact.

#### C. Balance of Equities Favors Claimant

85. The balance of equities overwhelmingly favors Claimant.

86. On one side of the scale: Claimant faces loss of her home, her business, and her livelihood while homeless. She faces a trajectory from homeowner (nine years) to renter (six years) to homeless.

87. On the other side of the scale: Wayne County would be required to pay Claimant a portion of the proceeds it has been holding for seven years—proceeds that are rightfully hers.

88. Wayne County suffers no harm from paying Claimant what is owed to her, particularly on a preliminary basis pending final adjudication.

89. If this Court orders preliminary payment of \$10,700 to prevent Claimant's eviction, and it is later determined (though unlikely) that Claimant is not entitled to those funds, County can recover them in the final order of allocation.

90. But if this Court does not grant relief, and Claimant is evicted, that harm cannot be undone.

91. Moreover, the equities are particularly compelling here because: a. Claimant did everything right—she filed timely, she complied with all requirements; b. County did everything wrong—County failed to send required notice, County violated the statute, County deprived Claimant of due process; c. County has had seven years to adjudicate this claim and distribute proceeds; d. Claimant invested \$257,600 in the property County foreclosed upon; e. Claimant has exhausted every other option, even selling her vehicle.

92. "Equity aids the vigilant, not those who slumber on their rights." *In re Yaldoo*, 281 Mich. App. 251, 267 (2008). Here, Claimant has been vigilant at every turn, while County has failed to meet its statutory obligations.

93. The balance of equities clearly and decisively favors Claimant.

#### D. Public Interest

94. The public interest is served by granting relief.

95. The public has an interest in the faithful execution of Michigan law, including MCL 211.78t's requirement that counties return surplus proceeds to property owners.

96. The public has an interest in preventing counties from retaining property in excess of taxes owed, which the Michigan Supreme Court has held violates constitutional principles. *Rafaelli v. Oakland County*, 505 Mich. 429 (2020).

97. The public has an interest in preventing homelessness, particularly when the person facing homelessness has a valid legal claim to funds sufficient to prevent it.

98. The public has an interest in supporting small businesses, particularly woman-owned small businesses that serve their communities, especially in the aftermath of COVID-19's devastating impact on small business.

99. The public has an interest in ensuring that property owners who invest in their homes and communities are not punished when counties fail to comply with statutory notice requirements.

100. The public has an interest in preventing counties from benefiting from their own violations of law.

101. No public interest is served by allowing Claimant to be evicted while Wayne County holds proceeds from her nine-year investment in homeownership.

102. The public interest strongly favors granting relief.

### III. EQUITABLE TOLLING APPLIES TO THE OCTOBER 1, 2025 DEADLINE

103. Even if this Court concludes that Claimant's Motion to Claim Proceeds was untimely filed, equitable tolling applies to excuse the late filing.

104. "Equitable tolling is appropriate when a plaintiff's failure to meet a legally-mandated deadline unavoidably arose from circumstances beyond that plaintiff's control." *Cook v. Statewide Fire Equipment*, 234 Mich. App. 237, 243 (1999).

105. Claimant could not meet the October 1, 2025 deadline because Wayne County failed to provide the case number and other information required by MCL 211.78t(7).

106. This failure was entirely beyond Claimant's control.

107. Claimant acted diligently at every step: a. Filed Form 6156 nearly two months early (February 12, 2025); b. Attempted to obtain necessary information; c. Filed this emergency motion within days of the eviction crisis.

108. Claimant should not be penalized for County's statutory violation.

109. "A party is entitled to equitable relief from a statutory deadline when the defendant's conduct prevented the party from complying with the deadline." *Walters v. Snyder*, 502 Mich. 1039 (2018).

110. Wayne County's failure to send the required motion notice prevented Claimant from complying with the October 1 deadline.

111. Equitable tolling applies, and Claimant's claim should be heard on the merits.

#### IV. WAYNE COUNTY'S VIOLATION OF DUE PROCESS REQUIRES RELIEF

112. Wayne County's failure to provide the required motion notice violated Claimant's constitutional right to due process.

113. "An elementary and fundamental requirement of due process in any proceeding which is to be accorded finality is notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections." *Mullane v. Central Hanover Bank & Trust Co.*, 339 U.S. 306, 314 (1950).

114. MCL 211.78t was enacted specifically to remedy due process violations identified by the Michigan Supreme Court in *Rafaeli and Hall*.

115. By failing to send the required motion notice, Wayne County perpetuated the very due process violations MCL 211.78t was designed to remedy.

116. Claimant had a property interest in the surplus proceeds from the foreclosure sale—proceeds that included her \$257,600 equity investment.

117. County's failure to provide notice and information deprived Claimant of her ability to pursue that property interest.

118. This deprivation violates the Due Process Clause of both the Michigan and United States Constitutions. Const. 1963, art. 1, § 17; U.S. Const. amend. XIV.

119. This Court should not permit County to benefit from its own constitutional violation.

#### V. SPECIFIC RELIEF REQUESTED

120. Claimant respectfully requests that this Court grant the following emergency relief:

##### A. STAY OF EVICTION PROCEEDINGS

121. This Court should issue an order staying any eviction proceedings against Claimant at 13697 Silent Woods Drive, Shelby Township, Michigan 48315 pending resolution of Claimant's claim for surplus proceeds.

122. This stay will preserve the status quo and prevent irreparable harm while the underlying claim is adjudicated.

## B. PRELIMINARY PAYMENT ORDER

123. This Court should order Wayne County to make a preliminary payment to Claimant of \$10,700 within 14 days, representing: a. Two months back rent: \$7,200 b. March 2026 rent: \$3,500

124. This amount represents a small fraction of the surplus proceeds likely available (estimated at \$60,000 to \$225,000 based on the property's resale value and the amounts potentially claimed by County and any mortgage holder).

125. This preliminary payment will enable Claimant to pay her landlord, prevent eviction, and maintain her home and business while her claim proceeds through adjudication.

126. Any preliminary payment can be accounted for in the final order of allocation of proceeds.

## C. EMERGENCY HEARING

127. This Court should schedule an emergency hearing on this motion within 48 to 72 hours given the imminent threat of eviction.

128. At such hearing, Claimant will present testimony and evidence supporting the facts alleged herein.

## D. EXPEDITED FINAL HEARING

129. This Court should schedule an expedited final hearing on Claimant's Motion to Claim Remaining Proceeds within 30 days.

130. Wayne County has had seven years to adjudicate and distribute these proceeds. Further delay is unconscionable.

## E. ORDER TO WAYNE COUNTY TO PROVIDE INFORMATION

131. This Court should order Wayne County to immediately provide to Claimant: a. The case number of the original 2019 foreclosure judgment; b. The date of the foreclosure judgment; c. The date and price of the auction sale; d. The total amount claimed by Wayne County; e. Whether any mortgage company filed a claim by March 31, 2025; f. If so, the identity of the mortgage company and the amount claimed; g. Any other information required for Claimant to pursue her claim.

132. This is the information County should have provided by July 1, 2025 pursuant to MCL 211.78t(7).

## CONCLUSION

Dieasha Davis was a homeowner for nine years. She invested \$257,600 in her home through a down payment and 108 consecutive monthly mortgage payments. She was building equity, building a life, building toward owning her home free and clear.

In 2019, facing business difficulties exacerbated by the logistics industry's challenges and predatory lending practices, she fell behind on property taxes. Wayne County foreclosed, took her property, sold it at auction, and gave her nothing.

For seven years, County has held those proceeds while Claimant struggled to rebuild her life as a renter.

In 2025, following the Michigan Supreme Court's mandate in *Rafaeli and Hall*, Claimant timely filed her claim for surplus proceeds. County acknowledged her claim but then violated the statute by failing to provide the information she needed to pursue that claim.

Now, on February 1, 2026, Claimant received an eviction notice from her rental home. She faces homelessness while Wayne County sits on the proceeds of her nine-year investment.

She has exhausted every option. She has sold her car. She has sought help everywhere. There is nowhere else to turn except to this Court and to the equity she built over nine years of homeownership.

Claimant is not asking for charity. She is asking for what is hers: the surplus proceeds from the foreclosure sale of property in which she invested \$257,600.

She is asking this Court to exercise its equitable authority to prevent an unconscionable injustice: a former homeowner rendered homeless while the County holds her equity.

This Court has the authority and the obligation to grant relief. All four requirements for preliminary injunction are met. The equities overwhelmingly favor Claimant. The public interest demands relief. Due process requires it.

This Court should not permit Dieasha Davis's trajectory to end in homelessness. From homeowner to renter to homeless—while Wayne County holds her money. This would be the definition of inequity.

WHEREFORE, Claimant respectfully requests this Honorable Court:

1. Grant an emergency stay of any eviction proceedings against Claimant;

2. Order Wayne County to make preliminary payment of \$10,700 to Claimant within 14 days;
3. Schedule an emergency hearing on this motion within 48 to 72 hours;
4. Grant Claimant's Motion for Extension of Time to file her Motion to Claim Remaining Proceeds, applying equitable tolling to the October 1, 2025 deadline;
5. Schedule an expedited final hearing on Claimant's surplus proceeds claim within 30 days;
6. Order Wayne County to immediately provide all information required by MCL 211.78t(7);
7. Grant such other and further relief as this Court deems just and equitable.

Respectfully submitted,

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Dated: February 3, 2026